2020 Y L R 2062

[Lahore]

Before Rasaal Hasan Syed, J

Mst. SHAHEEN BIBI---Petitioner

Versus

PERVAIZ ASLAM and others---Respondents

Writ Petition No. 16408 of 2020, decided on 17th June, 2020.

Civil Procedure Code (V of 1908)---

----O. XXII, R. 5---Determination of question as to legal representative---Scope---Petitioner assailed orders passed by courts below whereby her name was excluded from the list of legal heirs on the ground that she had been divorced by the deceased---Validity---Courts below had proceeded on mere assumptions as to the disputed divorce deed and had put the petitioner under an onus to seek a declaration from the court of law; little appreciating a serious factual controversy---Petitioner had specifically denied the genuineness of the document, respondents were banking upon the said document and were under an obligation to prove the same to be genuine and it was only after the proof of the document the petitioner could be excluded from the proceedings---Case was remanded to the trial court with the direction to frame an issue on the controversy as to the status of petitioner as legal heir of the deceased, allow both the parties to produce evidence and decide the matter afresh on the basis of evidence---Constitutional petition was accepted.

Raja Tasawer Iqbal and Ms. Ammara Liaquat Bhatti for Petitioner.

Syed Muhammad Shah for Respondent No.2.

ORDER

RASAAL HASAN SYED, J.---This Constitutional petition calls into question 20.4.2019 and 24.1.2020 whereby the name of the petitioner was excluded from the name of the list of legal heirs and the order was affirmed in revision.

2. Late Muhammad Javed instituted a suit for declaration with consequential relief. During the pendency of the suit he died on 21.6.2018. At the time of impleadment of his legal heirs controversy arose with regard to the status of the petitioner as his widow. On 14.3.2019 Syed Muhammad Shah, Advocate, recorded his statement without oath to the effect that Shaheen Bibi had been divorced allegedly by Muhammad Javed vide divorce deed dated 17.2.1999 and being so she could not fall in the list of legal heirs. On 20.4.2019 the learned civil judge passed the order to the effect that amended pleadings be filed by incorporating names of legal heirs except Shaheen Bibi, petitioner. This order was challenged in civil revision by the petitioner which was dismissed by the learned Addl. District Judge vide order dated 24.1.2020.

3. Learned counsel for the petitioner submitted that the petitioner was already a party in the proceedings and that without any investigation or inquiry her name was

excluded from the list of legal heirs on the based on forged divorce deed, original documents of NADRA were excluded, and the petitioner was not allowed the right of cross-examination to the opposing counsel whose statement was considered to be sacrosanct unjustifiably. Submits that the controversy could only be resolved by framing issues and recording of evidence and that the petitioner could not be directed to file a suit for declaration. Lastly, it was argued that the learned Addl. District Judge did not consider the actual requirement of law and illegally ignored that the order was against the rule of natural justice and due process. Learned counsel for the respondents in the course of arguments did not oppose the proposition that the controversy should be resolved through issues and evidence.

4. After hearing learned counsel for the parties in attendance it is observed that the learned trial court simply relied upon the objections raised and proceeded to direct the filing of amended pleadings by excluding Shaheen Bibi and incorporating the names of the Khursheed Bibi and legal heirs of Muhammad Atif. The revisional court also affirmed the order with the observation that the petitioner may assail the divorce deed in the civil court and adopt the independent remedy for relief.

5. It is manifest that the courts below proceeded on mere assumption as to the genuineness of the disputed divorce deed and put the petitioner under an onus to seek a declaration from the court of law; little appreciating that there was a serious factual controversy. Petitioner specifically denied the genuineness of the document, respondents were banking upon the said document and were obviously under an obligation to prove the document to be genuine and it was only after the proof of the document that the petitioner could be excluded from the proceedings. Another factor was that the petitioner was relying on the original NADRA record which in her perception contradicted the stance of the respondents. In these circumstances, it was obvious that the parties were seriously involved in factual controversy and therefore the learned trial court could not casually accept one side's viewpoint or non-suit the petitioner without any inquiry or opportunity of evidence. It was only due to this reason that the learned counsel for the respondents did not contest the course proposed for the disposal of the controversy, by remitting the matter to the court below and for decision after framing of issue and opportunity of evidence to the parties.

6. Even otherwise the impugned order on the face of it was violative of the rule of natural justice and due process. The courts below committed serious error of law in causally denying the petitioner the right to present her case and by excluding her from the proceedings. For the reasons above, this writ petition is accepted, the impugned orders are declared to be without lawful jurisdiction and accordingly annulled. In result, the case is remanded to the learned civil judge who shall frame an issue on the controversy as to the status of the petitioner as legal heir of the deceased Muhammad Javed, allow evidence to both sides and decide the matter afresh on the basis of evidence to be produced and in accordance with law.

SA/S-37/L Case remanded.

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